

Council Meeting

May 24, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, May 24, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Jim Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Mayor Girard stated there is one item for removal; Letter I: Merit Plan Agreement, and noted the City Manager will speak on this later. Assistant Mayor Matteau wants to add under new business, Letter K: Councilor Conduct.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to Suspend Council rules to add agenda item K, Councilor Conduct.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

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REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to accept the minutes of the May 10, 2023, City Council meeting.

Voice Vote:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard read the Stevens Alumni Proclamation.

Mayor Girard noted last week was National Law Enforcement Week, and this week is National EMS week, and thanked all of the EMS workers.

The Memorial Day Parade will take place this coming Monday starting at 10am.

Alumni Association Parade on June 10th will start at 10:30 a.m., following that will be Claremont’s Second Saturday Celebrations Block Party on Pleasant Street from 10am to 3pm.

Mayor Girard read a positive email received from the New Hampshire Preservation Alliance.

CITY MANAGER’S REPORT

Manager Manale noted the City had a productive budget meeting last Saturday, and reminded the public that they can participate.

As part of the 2024 Budget recommendation, the Finance office has budgeted for a 4% increase for merit plan employees, the total cost for FY2024 will be \$91,014.00. This was an FYI to the Council as these increases are not incorporated into the Council review of department budgets.

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Parks and Recreation department are clearing out the tree stumps in Moody Park for the Pine Hill disc golf tournament.

In anticipation for Memorial Day the Fire Department has been working with the American Legion to add flags onto Pleasant Street. The City will purchase additional flag holders for next year.

CITIZEN'S FORUM

Mayor Girard reminded all citizens can speak for five minutes on non-agenda items.

John Hall, stated on April 12th a proclamation was issued, Mr. Hall read the Proclamation that was presented to Mark Grasso on April 12th, 2023 for graduating the FBI National Academy. Mr. Hall noted the Proclamation received all but one of the Councilors signatures, and is deeply disappointed in Councilor O'Hearne. Mr. Hall noted this action was unacceptable and Councilor O'Hearne should be held accountable.

Elizabeth Graham, Ward 1, stated she had been sick and unable to come in for the last few meetings, and was wondering if there is a way the public can participate via social media.

Councilor Stone stated the budget meetings are only for tentative approval and there will be another public hearing before final vote.

Assistant Mayor Matteau noted the email addresses for councilors are available online.

NEW BUSINESS

CSBCC Final Report

Director Lawrence introduced Rich Synnott who joined the meeting via ZOOM from active entities. Mr. Synnott is the consultant for the Community Center.

Mr. Synnott gave a brief work history and introduced himself to Council, and then reviewed the final consultant report and highlighted the need for improvement to the Community Center's Programming.

Councilor Limoges asked why the cardio equipment is being replaced, Director Lawrence stated the equipment has hit ten years and needs updating, and mentioned there is a reserve fund for it.

Councilor Koloski shared concern from the past and doesn't want these recommendations to become shelved. Councilor Koloski noted after speaking with members of the community there is a market for children and family activities but there aren't many opportunities geared toward them now in the Community Center.

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Councilor Koloski asked about the diving board and suggested speaking with Primex. Councilor Koloski also suggested an inflatable obstacle course over the pool.

Assistant Mayor Matteau agreed with Councilor Koloski and believes this was a good first step, but doesn't want this to become forgotten, and suggested a follow up with Council in the next thirty to sixty days.

Councilor Stone agrees and would like to see a plan from administration in sixty days. Councilor Stone also suggested the Community Center be open twenty-four hours.

Mr. Synnott noted having the center open twenty-four hours does not always make a difference, as it needs to be a reward for community to work. Mr. Synnott also stated unless there are many second and third shift citizens, he doesn't really see the reward.

Manager Manale stated admin will put together an action plan and follow up with suggestions, and will do an analysis on the justification of staying open later.

Resolution 2023-28 ACERT Grant – Public Hearing

Chief Wilnot presented the ACERT Grant resolution and introduced Stephanie Durkee, the ACERT Coordinator to Council.

RESOLUTION 2023-28

2024 ARPA Claremont Police Department

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire has been awarded an American Rescue Plan Act Grant in the amount of \$80,000 for a one-year period to fund the position of ACERT Coordinator. This position facilitates the Adverse Childhood Experiences Response Team (ACERT) for the Greater Claremont Area; and

WHEREAS the City would like to accept and expend the funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept a grant in the amount of \$80,000.00 from the NH Department of Justice to fund the ACERT Coordinator position; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$80,000.00 for the Police Department (from off-setting grant revenue) for the purpose of compensation for said position for the Claremont Police Department with no impact to the tax rate; and

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BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 24th day of May, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Batchelder and seconded by Councilor Koloski to adopt resolution 2023-28 ACERT Grant.

Councilor Batchelder read Resolution 2023-28 into the record.

Councilor Koloski stated he was told this was life changing for a child.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

Resolution 2023-30 Watermain replacement grant funding - Public Hearing

Director Gleeson explained the Watermain Replacement resolution, and stated it was for removing lead in water lines. Director Gleeson also stated the North and Main project will be breaking ground next summer.

RESOLUTION 2023-30

Submission of a Funding Application to the NH Drinking Water Construction Projects Assistance Program

BE IT RESOLVED by the Claremont City Council, after a public hearing, duly noticed, that:

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WHEREAS, the City wishes to accept funds from the NH Drinking Water Construction Projects Assistance Program to complete projects relating to the replacement of the Main St water main; and

WHEREAS, in accordance with the "2022 Award Plan", the NH Drinking Water & Groundwater Advisory Commission requires that a funding application for the Construction Projects Assistance Program include an "authority to submit application" to meet the threshold for project readiness; and

WHEREAS, these actions are in response to the application acceptance; and

WHEREAS, the City wishes to protect the health and wellbeing of its citizens by replacing the Main St water main; and

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to apply, accept, and expend up to \$1,168,000 from the NH Drinking Water Construction Projects Assistance Program and enter into grant and loan agreements, with no impact on the tax rate.

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution.
(2/3 vote required)

Dated this 24th day of May, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Limoges and seconded by Councilor Batchelder to adopt resolution 2023-30 Watermain Replacement.

Councilor Limoges read Resolution 2023-30 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

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O’Hearne - yes

Girard - yes

Motion carried 9-0

AFSCME DPW Collective Bargaining Agreement

MOTION TO APPROVE PUBLIC WORKS AGREEMENT

I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Public Works) which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2024	\$68,869
FY 2025	<u>\$50,117</u>
Total Cost:	\$118,986

Said sums represent the additional costs attributable to the increase in salaries and benefits, over those of the appropriation at current staffing levels. The increase for FY 2024 shall be covered in the 2024 budget.

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to approve the Public Works Agreement.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

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IAFF Contract/Authorize City Manager to Execute

MOTION TO APPROVE IAFF AGREEMENT

I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and IAFF, Local 1571 (Fire Union), which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2024	\$29,131
FY 2025	\$18,935
Stipends	\$19,500
FY 2026	\$17,468
Stipends	<u>\$19,500</u>
Total Cost:	\$104,534

Said sums represent the additional costs attributable to the increase in salaries and benefits, over those of the appropriation at current staffing levels. The increase for FY 2024 shall be covered in the 2024 budget.

The IAFF agreement was re-read at 7:44 PM, after the Mayor clarified the vote was not taken during the first reading of the motion.

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to approve the IAFF agreement

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

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Teamsters Collective Bargaining Agreement

MOTION TO APPROVE TEAMSTERS AGREEMENT

I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and Teamsters Local Union #633, which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2024	\$ 35,290
FY 2025	\$ 27,526
FY 2026	<u>\$ 28,352</u>
Total Cost:	\$ 91,168

Said sums represent the additional costs attributable to the increase in salaries and benefits, over those of the appropriation at current staffing levels. The increase for FY 2024 shall be covered in the 2024 budget.

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to approve the Teamsters Agreement.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

PBA Union Contract Agreement

MOTION TO APPROVE PBA AGREEMENT

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I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and New England Police Benevolent Association, Local 217, which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2024	\$173,836
FY 2025	<u>\$113,404</u>
Total Cost:	\$287,240

Said sums represent the additional costs attributable to the increase in salaries and benefits over those of the appropriation at current staffing levels. The increase for FY 2024 shall be covered in the 2024 budget.

A motion was made by Councilor Stone and seconded by Councilor Koloski to approve the PBA Agreement.

Roll call:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

General Fund Revenue

By Consensus the Council agrees to bring the General Fund Revenue back during the Council Meeting on June 14th, 2023.

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Water Fund Budget

By Consensus the Council agrees to bring the Water Fund Budget back during the Council Meeting on June 14th, 2023.

Sewer Fund Budget

By Consensus the Council agrees to bring the Sewer Fund Budget back during the Council Meeting on June 14th, 2023.

Councilor Conduct

Assistant Mayor Matteau stated the Council received an email from the City Manager on May 12th regarding an incident that took place with Councilor O’Hearne on the evening of May 11th. The email detailed instances where Councilor O’Hearne allegedly interfered with a normal functioning and decision-making process of various departments within the City.

A motion was made by Assistant Mayor Matteau and seconded by Mayor Girard to schedule a removal hearing pursuant to the City Charter, Article 3, section 28, regarding Councilor Andrew O’Hearne for possible violation of City Charter Article 3, section 29 specifically related to claims of interference with City departments.

Assistant Mayor Matteau stated she thinks the Council needs to do their due diligence, and make sure this is done properly.

Councilor Batchelder asked if there can be a hearing without jumping straight to removal.

Mayor Girard stated that based on the Charter, that’s the only option for a hearing motion, and does not necessarily mean a removal is going to happen.

Assistant Mayor Matteau stated she does not want to do an ad-hoc committee again.

Councilor Stone disagreed and stated the ad-hoc committee is for fact finding and would support it.

Councilor Koloski stated he would like to learn from past mistakes, and believes the last ad-hoc committee was a mistake. Councilor Koloski noted the information that came back to council from the committee was duplicated.

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Councilor Batchelder agreed and doesn't think the ad-hoc committee drove a lot of value.

Mayor Girard stated according to the emails it should be easy to suggest who needs to speak at the hearing.

Councilor Stone wants a legal opinion from a standalone attorney, not one that the is used from the City.

Roll call:

Mooshian – yes

Contois- yes

Limoges - no

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne - yes

Girard - yes

Motion carried 8-1

By consensus the council agrees to have the hearing held of June 21st, 2023 at 6:30pm.

A motion was made by Councilor Stone and seconded by Councilor Limoges to implement an ad-hoc committee.

Roll call:

Mooshian – no

Contois- no

Limoges - yes

Koloski - no

Matteau – no

Stone - yes

Batchelder - no

O'Hearne - yes

Girard - no

Motion failed 6-3

Mayor Girard suggested the list of the following people to be at the hearing:

City Manager

Police Chief

Police Commissioner Dube

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DPW Director Gleeson
3 DPW Employees who made statements
Councilor O’Hearne

Mayor Girard will reach out to attorney Tanguay and ask who the Council can request to have at the hearing, Assistant Mayor Matteau would also like the Mayor to ask if it is necessary to swear anyone in.

Councilor Batchelder stated he personally feels like he wouldn’t want to compel the three DPW City employees be here.

Councilor Koloski stated he wants to request any recordings of calls to the Police Department.

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked for an update from the state on the boat landing project.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:20 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to adjourn.

Voice Vote:

Mooshian – yes

Contois- yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

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Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council

DRAFT